

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501931	GUTIERREZ VS CONTRERAS	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling: No tentative ruling; the Court requests appearances, either in person or telephonically.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2502132	CENTERPOINT PROPERTIES TRUST VS VOGUEBAY, LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The Court GRANTS the motion and awards the full \$14,596.57 in fees and costs.

On 4/25/2025, Plaintiff filed its Complaint. It asserts two causes of action for the following: (1) Breach of Contract against Voguebay; and (2) Breach of Contract against Meadows. On 7/9/2025, default was entered against Voguebay. On 6/9/2026, the court granted Meadows' motion for summary judgment on the grounds of collateral estoppel.

Now, Meadows moves for attorneys' fees and costs in a total amount of \$14,596.57. Meadows argues he is the prevailing party pursuant to Civil Code § 1717 and that the reciprocity provision of subdivision (a) which states the prevailing party on a contract shall be entitled to attorneys' fees and costs "...whether he or she is the party specified in the contract or not...." Meadows provides support for the amount sought.

In opposition, Plaintiff argues that the reciprocity clause does not apply because the court's ruling in the UD Action before this action was filed "conclusively established" that Plaintiff could not have prevailed on the contract and therefore, the reciprocity aspect of Civil Code § 1717 does not apply because Plaintiff could not have recovered fees.

In reply, Meadows argues Plaintiff essentially admits to filing a fraudulent lawsuit by admitting it could not prevail as the landlord per the UD Action ruling before Plaintiff filed this action. Meadows argues that nevertheless, if Plaintiff had prevailed on this case, it would have been entitled to attorneys' fees and that is the only applicable standard for whether Civil Code § 1717 reciprocity applies.